



CHAPTER xviii.

An Act to confirm certain Provisional Orders of the Minister of Health relating to Bradfield Water Burnham and District Water and Portishead District Water. A.D. 1924.
[14th July 1924.]

WHEREAS the Minister of Health has made the Provisional Orders set forth in the schedule hereto under the provisions of the Gas and Water Works Facilities Act 1870 and the Gas and Water Works Facilities Act 1870 Amendment Act 1873 : 33 & 34 Vict.
c. 70.
36 & 37 Vict.
c. 89.

And whereas it is requisite that the said Orders should be confirmed by Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Orders as altered and set out in the schedule hereto shall be and the same are hereby confirmed and all the provisions thereof shall have full validity and force. Orders in
schedule
confirmed.

2. This Act may be cited as the Ministry of Health Provisional Orders Confirmation (Water) Act 1924. Short title.

A.D. 1924.

SCHEDULE.

BRADFIELD WATER.

*Bradfield
Order.*

*Provisional Order under the Gas and Water Works
Facilities Act 1870 and the Gas and Water Works
Facilities Act 1870 Amendment Act 1873 for increasing
the rates leviable under the Bradfield Water Order 1904
and for other purposes.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows:—

Short and
collective
titles.

1. This Order may be cited as the Bradfield Water Order 1924 and the Bradfield Water Orders 1904 and 1909 and this Order may be cited together as the Bradfield Water Orders 1904 to 1924.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is hereinafter referred to as “the commencement of this Order.”

Interpreta-
tion.

3.—(1) In this Order unless the context otherwise requires—

“the Order of 1904” means the Bradfield Water Order 1904 which was confirmed by the Water Orders Confirmation Act 1904;

“the Order of 1909” means the Bradfield Water Order 1909 which was confirmed by the Gas and Water Orders Confirmation Act 1909;

“the limits of supply” means the limits within which the Undertakers are for the time being authorised to supply water.

(2) The several words terms and expressions to which by the Acts incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xviii.]
Provisional Orders Confirmation (Water) Act, 1924.

4. Herbert Watney of Buckhold Pangbourne Berks his heirs executors administrators or assigns shall be the Undertakers for the purposes of this Order and are in this Order referred to as "the Undertakers" Provided that if at any time the undertaking is assigned to any body company or person such body company or person shall from the date of such assignment thereof be the Undertakers for the purposes of this Order in lieu of the person or persons above mentioned but no assignment shall have any validity or effect until after the approval of the Minister of Health to such assignment has been signified in writing signed by a secretary or assistant secretary of the Ministry of Health Provided also that nothing in this Order contained shall prevent the Undertakers borrowing money on the security of mortgages of the undertaking not exceeding the amount prescribed by the Order of 1909 or shall make the consent or approval of the Minister of Health necessary to the validity of any such mortgage.

A.D. 1924.
—
Bradfield
Order.
Under-
takers.

5. As from the commencement of this Order Section 14 (Rates for domestic supply) of the Order of 1904 shall be repealed except for the purpose of recovering rates then in arrear and the Undertakers shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the Orders for the time being relating to the Undertakers to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for such domestic purposes at a rate not exceeding fifteen pounds per centum per annum upon the rateable value of the premises so supplied Provided that the Undertakers shall not be required to supply any premises with water for a less sum than seventeen shillings a year.

Rates for
domestic
supply.

The rateable value of any such premises as aforesaid shall be ascertained by the valuation list in force at the commencement of the quarter for which the rate accrues or if there be no such list in force by the last rate made for the relief of the poor Provided that where the water rate is chargeable on the rateable value of a part only of any hereditament entered in the valuation list such rateable value shall be a fairly apportioned part of the rateable value of the whole tenement ascertained as aforesaid the apportionment in case of dispute to be ascertained by a court of summary jurisdiction.

6. Section 19 (Supply of water by measure) of the Order of 1904 shall be read and have effect as if in lieu of the words "shall not exceed one shilling and ninepence" there had been inserted therein the words "shall not exceed two shillings and threepence."

Supply of
water by
measure.

7. On the application of the Undertakers or of a local authority having jurisdiction within the limits of supply or of seven consumers of water supplied by measure the Minister of

Revision
of rates.

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A.D. 1924. Health may if satisfied that circumstances have materially
changed make an order varying either by way of increase or
Bradfield decrease the rates or charges for the supply of water by this
Order. Order authorised:

Provided that the rates or charges prescribed in any such order shall be such as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the undertaking of the Undertakers and making good depreciation and paying all other costs charges and expenses (if any) properly chargeable to revenue) a reasonable return on the share capital of the Undertakers:

Provided also that in the absence of exceptional reasons the Minister shall not alter the rates or charges at less intervals than every five years.

Rates
payable by
owners of
small
houses.

8. When several houses are supplied by one common pipe or where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the Undertakers so determine pay the rate for the supply.

Supply to
certain
premises.

9.—(1) The Undertakers shall not be bound to supply with water otherwise than by measure (a) any workhouse hospital asylum (whether public or private) or public school sanatorium club hotel public-house inn hydropathic establishment or (b) any boarding-house capable of accommodating at least twelve persons or (c) any other institution which is habitually occupied by at least twenty persons.

(2) Where the Undertakers refuse to supply with water any such premises as are mentioned in this Article otherwise than by measure they shall on the application of the occupier or other person having the charge thereof supply the same with sufficient water for domestic or any other purposes at a rate not exceeding two shillings and threepence for every thousand gallons and the moneys payable to the Undertakers under this Article shall be recoverable in the same manner as rates due to the Undertakers for water. Provided that the Undertakers shall not be compelled to afford to any such premises a supply of water by measure for a less sum in any one quarter of a year than the amount of the rate which would have been payable in respect of such premises for a supply of water otherwise than by measure. Provided also that nothing in this Article contained shall prejudice alter or vary during its continuance the agreement entered into by the Undertakers as to the supply of water to Bradfield Workhouse or shall be held to affect the price to be charged by the Undertakers for such supply during the continuance of such agreement.

(3) Section 16 of the Order of 1904 and Section 17 of the Order of 1909 are hereby repealed.

[14 & 15 GEO. 5.] · *Ministry of Health* [Ch. xviii.]
Provisional Orders Confirmation (Water) Act, 1924.

A.D. 1924.

10. Section 35 of the Waterworks Clauses Act 1847 in its application to the Undertakers shall be read and construed as if the words "one-sixth part" and "five successive years" were substituted therein for the words "one-tenth part" and "three successive years" respectively.

*Bradfield
Order.*

Amendment of
Section 35 of
Waterworks
Clauses Act 1847.

11. Notwithstanding the limitation prescribed by the Order of 1909 it shall be lawful for the Undertakers to increase their capital for the purposes of the water undertaking authorised by the Orders of 1904 and 1909 and this Order by the sum of two thousand pounds (hereinafter referred to as "the additional capital") Provided always that unless any increase thereto be hereafter authorised by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament the capital of the Undertakers for the purposes of the said water undertaking shall not exceed twenty-one thousand pounds.

Additional
capital.

12. If and so long as the undertaking is carried on by an individual or individuals and not by a duly constituted company in the construction of this Order the expression "actually paid up" and in the construction of the provisions of the Waterworks Clauses Act 1847 with respect to the amount of profits to be received by the Undertakers when the waterworks are carried on for their benefit the expression "paid-up capital in the undertaking" shall be deemed to mean so much of the aforesaid capital of the Undertakers for the purposes of the undertaking not exceeding twenty-one thousand pounds as has actually been expended on or is actually being used for the purposes of the undertaking.

Paid-up
capital in
the under-
taking.

13. The Undertakers shall not in any year make out of their profits any larger dividend on the additional capital than seven pounds in respect of every one hundred pounds actually paid up of such capital.

Limits of
dividend on
capital.

14. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers and may in whole or in part be charged against revenue.

Costs of
Order.

Given under the Official Seal of the Minister of Health this
First day of April One thousand nine hundred and
twenty-four.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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Provisional Orders Confirmation (Water) Act, 1924.

A.D. 1924.

BURNHAM AND DISTRICT WATER.

*Burnham
and District
Order.*

*Provisional Order under the Gas and Water Works
Facilities Act 1870 and the Gas and Water Works
Facilities Act 1870 Amendment Act 1873 for
empowering the Burnham Dorney and Hitcham
Waterworks Company Limited to increase their
capital and for other purposes.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows:—

Short and
collective
titles.

1. This Order may be cited as the Burnham and District Water Order 1924 and the Burnham and District Water Order 1896 the Burnham and District Water Order 1899 the Burnham and District Water Order 1902 and this Order may be cited together as the Burnham and District Water Orders 1896 to 1924.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act of Parliament confirming this Order is passed which date is hereinafter referred to as “the commencement of this Order.”

Incorpora-
tion of Acts.

3. So far as the same relate to the powers conferred by this Order the provisions of the Waterworks Clauses Acts 1847 and 1863 are (except where expressly varied by this Order) incorporated with and form part of this Order:

Provided that Section 44 of the Waterworks Clauses Act 1847 shall for the purposes of this Order have effect as if the words “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner” were omitted therefrom.

For the purpose of such incorporation the term “special Act” in the said Acts shall be construed to mean this Order and the term “Company” shall mean the Undertakers.

Interpreta-
tion.

4.—(1) In this Order unless the context otherwise requires—

“The Order of 1896” means the Burnham and District Water Order 1896 confirmed by the Water Orders Confirmation Act 1896;

“The Order of 1899” means the Burnham and District Water Order 1899 confirmed by the Water Orders Confirmation Act 1899;

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“The Order of 1902” means the Burnham and District Water Order 1902 confirmed by the Water Orders Confirmation Act 1902;

A.D. 1924,

“The Undertakers” means the Burnham Dorney and Hitcham Waterworks Company Limited.

—
*Burnham
 and District
 Order.*

(2) The several words terms and expressions to which by the Acts incorporated with this Order and by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

5. The limitation prescribed by the Order of 1902 with respect to the amount of the share capital of the Undertakers for the purposes of the undertaking shall not prevent the Undertakers from raising for such purposes further share capital (in this Order referred to as “new capital”) not exceeding twenty-five thousand pounds including any premiums which may be obtained on the issue thereof:

New capital.

Provided that the share capital of the Undertakers for the purposes of their undertaking shall not exceed in the whole fifty thousand pounds unless the Undertakers are hereafter authorised to raise further share capital by Provisional Order under the Gas and Water Works Facilities Act 1870 or by Act of Parliament.

6.—(1) Notwithstanding anything contained in the Burnham and District Water Orders 1896 to 1924 all shares created by the Undertakers after the commencement of this Order shall be issued in accordance with the provisions of this Article.

Shares to
 be sold by
 auction or
 tender.

(2) All shares so to be issued shall be offered for sale by public auction or tender in such manner and at such times and subject to such conditions of sale as the Undertakers shall by special resolution determine:

Provided as follows:—

(a) Notice of the intended sale shall be given in writing to the clerk of the local authority of every district within the limits of supply and to the secretary of the London Stock Exchange at least seven days before the day of auction or the last day for the reception of tenders as the case may be and shall also be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the limits for the supply of water by the Undertakers;

(b) A reserve price shall be fixed by the directors of the Undertakers and notice thereof shall be sent by the Undertakers in a sealed letter to be received by the Board of Trade not less than twenty-four hours before but not to be opened till after the day of auction or last day for the receipt of tenders as the case may be;

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A.D. 1924.

*Burnham
and District
Order.*

(c) No lot offered for sale shall comprise shares of greater nominal value than one hundred pounds;

(d) In the case of a sale by tender no preference shall be given to one of two or more persons tendering the same sum and in the case of a sale by auction a bid shall not be recognised unless it is in advance of the last preceding bid;

(e) It shall be one of the conditions of sale that the total sum payable by the purchaser shall be paid to the Undertakers within three months after the date of the auction or of the acceptance of the tender as the case may be.

(3) Any shares which have been so offered for sale and are not sold may be offered at the reserve price to the holders of ordinary and to the holders of preference shares of the Undertakers in manner prescribed in a resolution passed by the directors of the Undertakers and to the employees of the Undertakers and to the consumers of water supplied by the Undertakers in such proportions as the directors of the Undertakers may think fit or to one or more of these classes of persons only. Provided that in a case of an offer to holders of shares if the aggregate amount of shares applied for shall exceed the aggregate amount so offered as aforesaid the same shall be allotted to and distributed amongst the applicants as nearly as may be in proportion to the amounts applied for by them respectively.

(4) Any shares which have been offered for sale in accordance with subdivision (2) or with subdivisions (2) and (3) of this Article and are not sold shall be again offered for sale by public auction or by tender in accordance with the provisions of this Article and any such shares then remaining unsold may be otherwise disposed of at such price and in such manner as the directors of the Undertakers may determine for the purpose of realising the best price obtainable.

(5) As soon as possible after the conclusion of the sale or sales the Undertakers shall send a report thereof to the Board of Trade stating the total amount of the respective shares sold the total amount obtained as premium (if any) and the highest and lowest prices obtained for the respective shares.

Application
of money.

7. All moneys raised under this Order including premiums shall be applied only to purposes to which capital is properly applicable and any sum of money which may arise by way of premium from the issue of shares under the provisions of this Order shall not be considered as part of the capital of the Undertakers entitled to dividend.

Limit of
dividend
on capital.

8. The Undertakers shall not in any year declare or make out of their profits any larger dividend on the new capital than

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seven pounds in respect of every one hundred pounds of so much of such capital as may be issued as ordinary capital unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend which shall have fallen short of the said sum of seven pounds per centum per annum or than six pounds in respect of every one hundred pounds of so much of the new capital as may be issued as preference capital.

A.D. 1924.

—
*Burnham
 and District
 Order.*

9. Section 15 of the Order of 1896 shall be read and have effect as if the following words had been added at the end of that section namely:—

Amendment
 of Section 15
 of Order of
 1896.

“ unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on such original or additional ordinary capital which shall have fallen short of the said sums of ten pounds and seven pounds respectively.”

10. Section 12 of the Order of 1899 shall be read and have effect as if the following words had been added at the end of that section namely—

Amendment
 of Section 12
 of Order of
 1899.

“ unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on such additional capital which shall have fallen short of the said sum of seven pounds.”

11. Section 16 of the Order of 1902 shall be read and have effect as if the following words had been added at the end of that section namely—

Amendment
 of Section 16
 of Order of
 1902.

“ unless a larger dividend be at any time necessary to make up the deficiency of any previous dividend on such new capital which shall have fallen short of the said sum of seven pounds.”

12. Section 16 of the Order of 1896 Section 13 of the Order of 1899 and Section 17 of the Order of 1902 are hereby repealed and in case in any year or in any half-year if the Undertakers declare a dividend half-yearly the funds of the Undertakers applicable to dividend are insufficient to pay the full amount of the prescribed maximum rate of dividend on each class of ordinary shares in the original or additional or new capital of the Undertakers a proportionate reduction shall be made in the dividends payable on each class.

Prescribed
 rates to be
 paid propor-
 tionately.

13.—(1) Notwithstanding anything in Section 18 of the Order of 1902 the Undertakers may borrow on mortgage of their undertaking any sum or sums of money (inclusive of any sums already borrowed by them) not exceeding in the whole one-half of the amount of the capital of the Undertakers at the time actually raised by the issue of shares including any premiums that may have been or may be obtained on the sale of any such shares.

Limit of
 borrowing
 powers.

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A.D. 1924.

—
*Burnham
and District
Order.*

(2) No higher rate of interest than seven pounds per centum per annum shall be paid by the Undertakers without the consent of the Minister of Health in respect of any moneys borrowed by the Undertakers after the commencement of this Order and secured as aforesaid and the said Section 18 in its application to any moneys so borrowed shall be read and have effect as if the words "seven pounds per centum per annum" had been inserted therein in lieu of the words "five pounds per centum per annum."

Rates
payable by
owners of
certain
houses.

14. Where a house supplied with water is let to monthly or weekly tenants or tenants holding for any other period less than a quarter of a year the owner instead of the occupier shall if the directors of the Undertakers so determine pay the rate for the supply but the rate may be recovered from the occupier and may be deducted by him from the rent from time to time due from him to the owner Provided that no greater sum shall be recovered at any one time from any such occupier than the amount of rent owing by him or which shall have accrued due from him subsequent to the service upon him of a notice to pay the rate.

Fittings
let for hire
not to be
subject to
distress.

15. Any fittings let for hire by the Undertakers shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Undertakers as the actual owners thereof.

Undertakers
not bound
to supply
several
houses by
one pipe.

16. The Undertakers shall not be bound to supply more than one house with water by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the main pipe into each house supplied by them with water.

Maintenance
of common
pipe.

17. When several houses or parts of houses in the occupation of several persons are supplied by one common pipe belonging to the several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Undertakers in the maintenance and repair of such pipe and their respective proportions of contributions shall be settled by the engineer of the Undertakers.

Power to
sell meters.

18. The Undertakers may sell meters and any fittings connected therewith upon and subject to such terms (pecuniary or otherwise) and conditions as they think fit.

Power to
lay pipes
in private
streets.

19. The Undertakers may on the application of the owner or occupier of any premises within the limits from time to time

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for the supply of water by the Undertakers abutting on or being erected in any street laid out but not dedicated to public use supply those premises with water and for that purpose the Waterworks Clauses Act 1847 shall apply as if Section 29 of that Act were excepted from incorporation in this Order and as if the street were under the control or management of the local authority.

A.D. 1924.

—
*Burnham
and District
Order.*

20.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or under any other Act or any Order relating to the Undertakers to maintain any pipe or apparatus used for the supply of water from the works of the Undertakers the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of Sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

As to com-
munication
pipes.

(2) The Undertakers by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any streets in the limits for the supply of water by the Undertakers may subject to the like conditions execute such works on behalf of such owner or occupier and any expenses incurred by the Undertakers shall be repaid by the owner or occupier with whom the agreement is made and shall be recoverable summarily as a civil debt.

21. If it should appear to the Undertakers that by reason of any injury to or defect in any communication pipe which the Undertakers are not under obligation to maintain any waste of water or injury or risk of injury to person or property is caused or likely to be caused it shall be lawful for the Undertakers to execute such repairs as they may think necessary or expedient in the circumstances of the case without being requested so to do and the expense incurred by the Undertakers in executing such repairs shall be recoverable by the Undertakers from the owner:

Power to
Undertakers
to repair
communica-
tion pipes.

Provided that except in case of emergency the Undertakers shall not under the powers of this section enter into any house or private premises unless they shall have given to the owner of such house or premises not less than twenty-four hours' previous notice of their intention so to enter.

22. Subject to the provisions of the Waterworks Clauses Act 1847 the Undertakers may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus and stopcocks on or in any mains or pipes supplying houses with water (without thereby in any way affecting the ownership of any such mains or pipes) and may insert in the roads or footways the necessary covers or boxes for giving access and protection

Detection
of waste.

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—
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 and District
 Order.*

thereto and for that purpose stop up break up and interfere temporarily with public and private streets roads lanes footways sewers courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Undertakers shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Saving for
 Great
 Western
 Railway
 Company.

23. The Undertakers shall not exercise the powers conferred by Articles 19 20 and 22 of this Order in any street or road belonging to the Great Western Railway Company without the consent of that company which consent shall not be unreasonably withheld.

Application
 of Section 35
 of Water-
 works
 Clauses
 Act 1847.

24. Section 35 of the Waterworks Clauses Act 1847 in its application to the Undertakers shall be read and construed as if the words "one-sixth part" and "five successive years" were substituted therein for the words "one-tenth part" and "three successive years" respectively.

Guarantees
 by district
 councils.

25.—(1) Any urban or rural district council whose district is in whole or in part within the limits from time to time for the supply of water by the Undertakers may give and enter into any guarantee or contract for securing payment to the Undertakers of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Undertakers for the purpose of or with respect to the providing or laying down by the Undertakers of any main pipe or works for the supply of water within any part of such district which is within the said limits by means of such main pipe or works.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Undertakers under this Article.

Power to
 local
 authorities
 to guarantee
 on behalf
 of owners
 and
 occupiers.

26. Any requisition which may be made under Section 35 of the Waterworks Clauses Act 1847 by owners or occupiers of houses requiring a supply of water may be made by the local authority of the district in which such houses are situate on behalf of such owners or occupiers and shall be binding on the Undertakers if the local authority execute an agreement binding themselves to pay for three successive years at least for the supply of water to the houses in respect of which the requisition was made the amount which would have been payable under the said section as amended by this Order by such owners or occupiers.

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27. Every person who shall wilfully (without the consent of the Undertakers) or negligently close or shut off or open any valve cock or other work or apparatus belonging to the Undertakers whereby the supply of water or the control of such supply shall be interfered with shall (without prejudice to any other right or remedy of the Undertakers) be liable on conviction to a penalty not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained. Provided that this Article shall not apply to a consumer closing or opening a valve fixed on his communication pipe.

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—
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 and District
 Order.*

Penalty for
 closing &c.
 valves and
 apparatus.

28. The Undertakers shall not be compelled to supply with water otherwise than by measure any building used by an occupier as a dwelling-house whereof any part is used by the same occupier for any trade or manufacturing purpose for which water is required :

Supply to
 houses
 partly used
 for trade.

Provided that where a water supply to a farmhouse is used for farming purposes the Company may require that the supply for farming purposes shall be taken by measure but nothing in this Article shall authorise the Company to refuse to supply water for domestic purposes to a farmhouse at the ordinary rate calculated on the rateable value thereof.

29. The Undertakers shall not be bound to supply with water any workhouse hospital asylum (whether public or private) or sanatorium or any other public institution otherwise than by meter upon such terms as may be agreed between the Undertakers and the occupier or other person having the charge thereof or at the rates which the Undertakers are under the provisions of Article 31 of this Order entitled to charge for supply by meter. Provided that the provisions of this Article shall not apply to any such premises which are habitually occupied by less than twelve persons.

Supply by
 meter in
 certain cases.

30.—(1) The Undertakers shall not if a hose pipe or other similar apparatus is used be compelled to supply water for use for washing carriages motor cars or other vehicles or for use for other purposes in stables or premises where carriages motor cars or other vehicles are kept otherwise than by meter at the rates which the Undertakers are under the provisions of Article 31 of this Order entitled to charge for supply by meter. Provided that the minimum sum for which the Undertakers shall be compellable to afford a supply for such purposes shall be twenty shillings in any one year.

Further
 provision
 as to
 supply by
 meter for
 certain
 purposes.

(2) In all cases to which this Article shall apply and in which a meter with an inlet and outlet not exceeding respectively three-eighths of one inch in diameter is sufficient for the purpose of the supply the Undertakers shall supply and fix the meter at

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A.D. 1924. their own expense and shall not be entitled to charge for the use of the same any higher rent than six shillings per annum.

—
*Burnham
and District
Order.*

Rates for
supply by
meter in
certain
cases.

31. The prices to be charged by the Undertakers to those owners or occupiers who under the provisions of this Order are compellable to accept a supply by meter shall be as follows :—

Where the quantity taken in any quarter of a year shall not exceed fifty thousand gallons at a rate not exceeding two shillings for every thousand gallons ;

Where the quantity taken in any quarter of a year shall exceed fifty thousand gallons then at a rate not exceeding one shilling and sixpence for every thousand gallons in excess of the first fifty thousand gallons supplied in any quarter :

Provided that the Undertakers shall not be compellable to afford a supply by meter for a less sum than twenty shillings in any one year or a sum equal to the amount payable for the time being for a supply of water for domestic purposes to premises of a like rateable value whichever is lower.

Notice
of dis-
continuance.

32. A notice to the Undertakers from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Undertakers.

Notice to
Undertakers
of connecting
or discon-
necting
meters.

33. Before any person connects or disconnects any meter by means of which any of the water of the Undertakers is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Undertakers of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Undertakers and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Temporary
discharge of
water into
streams.

34.—(1) For the purpose of constructing enlarging extending repairing cleansing emptying or examining any of the works authorised to be constructed or maintained by them the Undertakers may cause the water in such works to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this Article the Undertakers shall do as little damage as may be and shall make compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

(3) The powers of this Article shall not be exercised so as to damage or injuriously affect the railways or works of the Great Western Railway Company.

[14 & 15 GEO. 5.] *Ministry of Health* [Ch. xviii.]
Provisional Orders Confirmation (Water) Act, 1924.

35. Any notice to be served by the Undertakers on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Undertakers from time to time authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper inquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

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—
*Burnham
and District
Order.*

Authentica-
tion and
service of
notices by
Undertakers.

36. Save as otherwise expressly provided by any Act or Order from time to time relating to the Undertakers all offences against any such Act or Order and all penalties forfeitures costs and expenses imposed or recoverable under the same or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Recovery
of penalties
&c.

37. Proceedings for the recovery of any demand made under the authority of any Act or Order from time to time relating to the Undertakers whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court provided that the demand does not exceed the amount recoverable in that court in a personal action.

Recovery of
demands.

38. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers.

Costs of
Order.

Given under the Official Seal of the Minister of Health this
Seventh day of April One thousand nine hundred and
twenty-four.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

[Ch. xviii.] *Ministry of Health* [14 & 15 GEO. 5.]
Provisional Orders Confirmation (Water) Act, 1924.

A.D. 1924.

PORTISHEAD DISTRICT WATER.

*Portishead
District
Order.*

*Provisional Order under the Gas and Water Works
Facilities Act 1870 and the Gas and Water Works
Facilities Act 1870 Amendment Act 1873 for increasing
the rates leviable by the Portishead District Water
Company and for other purposes.*

The Minister of Health in pursuance of the powers given to him by the Gas and Water Works Facilities Act 1870 the Gas and Water Works Facilities Act 1870 Amendment Act 1873 and of all other powers enabling him in that behalf hereby orders as follows :—

Short and
collective
titles.

1. This Order may be cited as the Portishead District Water Order 1924 and the Portishead District Water Act 1875 the Portishead District Water Act 1883 the Portishead District Water Act 1907 and this Order may be cited together as the Portishead District Water Acts and Order 1875 to 1924.

Commence-
ment of
Order.

2. This Order shall come into force and have effect upon the day when the Act confirming this Order is passed which date is hereinafter referred to as “ the commencement of this Order.”

Interpreta-
tion.

3.—(1) In this Order unless the context otherwise requires—
“ the Act of 1875 ” means the Portishead District Water Act 1875;
“ the Act of 1883 ” means the Portishead District Water Act 1883;
“ the Act of 1907 ” means the Portishead District Water Act 1907;
“ the Undertakers ” means the Portishead District Water Company;
“ the limits of supply ” means the limits for the time being of the Undertakers for the supply of water.

(2) The several words terms and expressions to which by the Gas and Water Works Facilities Act 1870 meanings are assigned have in this Order the same respective meanings.

Rates for
domestic
supply.

4. As from the first quarter day after the commencement of this Order the following provisions shall have effect in lieu of the provisions of Sections 61 and 62 of the Act of 1875 (that is to say) :—

The Undertakers shall at the request of the owner or occupier of any dwelling-house or part of a dwelling-house entitled under the provisions of the Portishead District Water Acts and Order 1875 to 1924 to demand a supply of water

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for domestic purposes furnish to such owner or occupier a sufficient supply of water for such purposes at rates not exceeding the following rates upon the annual rack rent or if not let at annual rack rent upon the annual value of the dwelling-house or the part of the dwelling-house supplied (that is to say) :—

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—
Portishead
District
Order.

Where such rack rent or value does not exceed thirty pounds at a rate per annum not exceeding twelve and one-half per centum upon such rack rent or value ;

Where such rack rent or value exceeds thirty pounds but does not exceed fifty pounds at a rate per annum not exceeding eleven and two-thirds per centum upon such rack rent or value ;

Where such rack rent or value exceeds fifty pounds but does not exceed one hundred pounds at a rate per annum not exceeding ten and five-sixths per centum upon such rack rent or value ;

Where such rack rent or value exceeds one hundred pounds at a rate per annum not exceeding ten per centum upon such rack rent or value :

Provided that the Undertakers shall not be bound to afford a supply of water to any premises for a less sum than fourpence a week and that nothing in this Article shall entitle the Undertakers in any case to demand for the water rate for any premises included in any division of the above scale a greater sum than they would be entitled to demand if the rack rent or annual value of the premises were just sufficient to bring them within the next division of the said scale relating to premises whereon a lower rate per centum is chargeable.

In addition to the foregoing charges the Undertakers may demand and receive for every watercloset beyond the first (for which no additional charge shall be made) on any premises within their limits of supply any yearly sum not exceeding ten shillings and for every fixed bath capable of containing not more than fifty gallons any yearly sum not exceeding ten shillings and for every fixed bath capable of containing more than fifty gallons such sum as the Undertakers may think fit any such additional sums to be paid quarterly in advance and to be recoverable in all respects with and as the water rates.

5. Section 23 (Price of supply by measure) of the Act of 1907 shall be read and have effect as if in lieu of the words "two shillings per thousand gallons" there had been inserted therein the words "three shillings per thousand gallons."

Price of
supply by
measure.

6. Section 24 (Price of supply for public purposes) of the Act of 1907 shall be read and have effect as if in lieu of the words "one shilling per thousand gallons" there were inserted therein the words "two shillings per thousand gallons."

Price of
supply for
public pur-
poses.

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Portishead
District
Order.

Revision of
rates.

7. On the application of the Undertakers or of a local authority having jurisdiction within the limits of supply the Minister of Health may if satisfied that circumstances have materially changed make an Order varying either by way of increase or decrease the rates for the supply of water by this Order authorised :

Provided that the rates prescribed in any such Order shall be such as to provide (after paying all proper expenses of and in connection with the working management and maintenance of the undertaking of the Undertakers and making good depreciation and paying all other costs charges and expenses (if any) properly chargeable to revenue) a reasonable return on the share capital of the Undertakers :

Provided also that in the absence of exceptional reasons the said Minister shall not alter the rates at less intervals than every five years.

Charges for
hose-pipes.

8. Where water supplied for domestic purposes is used for horses or washing carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Undertakers may if a hose pipe or other similar apparatus is used charge such additional sum not exceeding twenty-five shillings per annum as they may prescribe for each such hose pipe or other apparatus and any sum charged under this Article shall be recoverable as water rates are recoverable.

Supply to
certain insti-
tutions &c.

9.—(1) The Undertakers shall not be bound to supply with water otherwise than by measure any workhouse hospital asylum (whether public or private) sanatorium school club hotel public-house or inn or any boarding-house capable of accommodating at least twelve persons or any public institution which is habitually occupied by at least twelve persons.

(2) Where a supply of water to a farmhouse is used for farming purposes the Undertakers may require that the supply for farming purposes shall be taken by measure but nothing in this Article shall authorise the Undertakers to refuse a supply of water for domestic purposes to a farmhouse at the rate for the time being in force for the supply by the Undertakers of water for domestic purposes to such farmhouse.

(3) The minimum quarterly charge (exclusive of meter rent) for a supply of water by measure to any of the premises in this Article mentioned shall be one-fourth of the annual amount which would be payable according to the rate for the time being in force for a domestic supply to a dwelling-house of the same rack rent or annual value.

(4) Provided that notwithstanding anything contained in this Article the provisions of paragraph (3) hereof shall not apply to any supply furnished by the Undertakers pursuant to

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this Article to the Ham Green Hospital and Sanatorium and premises connected therewith (as existing for the time being) of the Lord Mayor Aldermen and Burgesses of the City of Bristol.

—
Portishead
District
Order.

10. The provisions of Section 35 of the Waterworks Clauses Act 1847 shall in their application to the Undertakers be read and construed as if the one-tenth part of the expense of providing and laying down pipes mentioned in that section were one-seventh part of such expense and as if the period of three successive years were five successive years.

Amendment
of Section 35
of the Water-
works
Clauses Act
1847.

11.—(1) For the purpose of complying with any obligation under the Waterworks Clauses Act 1847 or under any other Act relating to the Undertakers to maintain any pipe or apparatus used for the supply of water from the works of the Undertakers the person liable to maintain the same shall have the like power to open the ground as is conferred upon him by and subject to the conditions of Sections 48 to 52 of the Waterworks Clauses Act 1847 in relation to the laying of communication pipes.

As to com-
munication
pipes.

(2) The Undertakers may by agreement with any owner or occupier entitled or required to lay maintain repair or remove any communication pipe and for that purpose to open or break up any street in the limits of supply execute such works on behalf of such owner or occupier but subject to any obligations of such owner or occupier in relation to the execution of such works and any expenses incurred by the Undertakers in so doing shall be repaid by the owner or occupier with whom the agreement is made.

12. When several houses or parts of houses in the occupation of several persons are supplied with water by one common pipe belonging to several owners or occupiers of such houses or parts of houses the said several owners or occupiers shall be liable to contribute the amount of any expenses from time to time incurred by the Undertakers in the maintenance and repair of such pipe and their respective proportions of any such contributions shall be settled by the engineer or manager of the Undertakers and such proportions shall be recoverable by the Undertakers as water rates are recoverable.

Maintenance
of common
pipe.

13. Every person who shall wilfully (without the consent of the Undertakers) or negligently close or shut off any valve cock or other work or apparatus belonging to the Undertakers and thereby cause interference with the supply of water shall (without prejudice to any other right or remedy of the Undertakers) be liable to a penalty not exceeding five pounds and the Undertakers may in addition thereto recover the amount of any damage by them sustained. Provided that this Article shall not apply to a consumer closing a valve fixed on his communication pipe.

Interference
with valves
pipes and
fittings.

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A.D. 1924.

*Portishead
 District
 Order.*

Guarantees
 by district
 councils.

14.—(1) Any urban or rural district council whose district is in whole or in part within the limits of supply may give and enter into any guarantee or contract for securing payment to the Undertakers of such periodical or other sum or sums at such time or times in such manner and subject to such stipulations as may be agreed by and between such council and the Undertakers for the purpose of or with respect to the providing or laying down by the Undertakers of any main pipe or works for the supply of water within any part of such district.

(2) The giving of such guarantee and the performance of any contract in relation thereto shall be deemed to be a purpose for which under the provisions of any general Act relating to the powers of such council they may incur expenditure and any such council may raise in like manner as money may be raised under the provisions of any such general Act any money which may become payable to the Undertakers under this Article.

(3) Nothing in this Article shall be deemed to authorise any such urban or rural district council to use any water supplied by the Undertakers under any such guarantee or contract as aforesaid in any part of the district of such council which is beyond the limits of supply and within the limits for the supply of water of any other authority supplying water under parliamentary authority without the consent of such other authority.

Power to
 local autho-
 rities to
 guarantee on
 behalf of
 owners and
 occupiers.

15. Any requisition which may be made under Section 35 of the Waterworks Clauses Act 1847 by owners or occupiers of houses requiring a supply of water may be made by the local authority of the district on behalf of such owners or occupiers and shall be binding on the Undertakers if the local authority execute an agreement binding themselves to pay for five successive years at least for the supply of water to the houses in respect of which the requisition was made the amount which would have been payable under the said section as amended by this Order by such owners or occupiers.

Purchase of
 water in
 bulk.

16. The Undertakers may enter into and carry into effect agreements made with any water authority company body or person supplying water under parliamentary authority for the purchase of water in bulk by the Undertakers for such price and on such terms and conditions and for such period as may be agreed upon and any water so purchased may be used by the Undertakers for the purposes of the undertaking.

Fittings on
 hire to
 remain pro-
 perty of
 Undertakers.

17. All engines meters fittings apparatus and appliances (in this Article referred to as "fittings") let by the Undertakers on hire under any statutory powers shall notwithstanding that they be fixed or fastened to any part of any premises in which they may be situate or to the soil under any such premises at all times continue to be the property of and removable by

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the Undertakers Provided that such fittings are marked or impressed with a sufficient mark or brand indicating the Undertakers as the actual owners thereof Provided also that nothing in this Article shall affect the amount of the assessment for rating of any premises upon which any such fittings are or shall be fixed.

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*Portishead
District
Order.*

18. The provisions of the Act of 1875 the Act of 1883 and the Act of 1907 relating to the borrowing or raising of moneys on mortgage of the undertaking or by the creation and issue of debenture stock shall be read and construed as if the Undertakers had been by those Acts authorised to borrow on mortgage of the undertaking or to raise by the creation and issue of debenture stock an amount equal to one-half part of the moneys which at the time of such borrowing or of the issue of the debenture stock has been raised by the Undertakers by the creation and issue of ordinary and preference shares or stock under the powers of those Acts or any of them.

As to borrowing powers.

19. Any notice to be served by the Undertakers on a person supplied with water shall be sufficiently authenticated by the signature of the secretary or other officer of the Undertakers for the time being authorised in writing by the directors being affixed thereto in writing or in print or by a stamp or if it be a notice to pay any charge in respect of a supply of water by the name either of the secretary or of such other officer as aforesaid being affixed thereto as aforesaid and any such notice may be served on such person either personally or by sending the same through the post by a prepaid letter addressed to him by name at his last known or usual place of abode or of business or by delivering the same to some inmate at his last known or usual place of abode or business or to any inmate of the premises supplied or if such premises be unoccupied and the place of abode of the person to be served is after proper enquiry unknown it shall in the case of any notice not being a notice to pay any charge be sufficient to affix such notice or a copy thereof upon some conspicuous part of such premises.

Authentication and service of notices by Undertakers.

20. Where the payment of more than one sum by any person is due under any Act or Order from time to time relating to the Undertakers any summons or warrant issued for the purposes of any such Act or Order in respect of that person may contain in the body thereof or in a schedule thereto all the sums payable by him.

Several sums in one summons.

21. Save as otherwise expressly provided by any Act or Order from time to time relating to the Undertakers all offences against and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or Order or any byelaw made in pursuance thereof may be prosecuted and recovered in a

Recovery of penalties &c.

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A.D. 1924.

—
Portishead
District
Order.

Costs of
Order.

summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

22. All costs charges and expenses of and incidental to the applying for preparing obtaining and confirming this Order and otherwise in relation thereto shall be paid by the Undertakers and may in whole or in part be charged against revenue.

Given under the Official Seal of the Minister of Health this
Twelfth day of April One thousand nine hundred and
twenty-four.

(L.S.)

H. W. S. FRANCIS
Assistant Secretary Ministry of Health.

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